

MANUFACTURED HOME SALES CONTRACT AND DEPOSIT AGREEMENT

PARTIES

Seller _____ Retailer License # _____

Address _____ Email _____

City _____ State _____ Zip _____ Phone: _____ / _____

AND

Purchaser (s) _____

Address _____ Email _____

City _____ State _____ Zip _____ Phone: _____ / _____

Seller agrees to sell and convey to Purchaser and Purchaser agrees to buy from Seller the Property defined below:

DESCRIPTION OF HOME

☐ New Home ☐ Previously Owned ☐ In Stock ☐ Special Order No. of Sections _____ Approx. Sq Ft _____

Manufacturer _____ Model _____

Section Label No.		ID Number		Size (excl. hitch)	x
Section Label No.		ID Number		Size (excl. hitch)	x
Section Label No.		ID Number		Size (excl. hitch)	x

A. PURCHASE PRICE

1. Base price	\$
2. Options	\$
3. Installation	\$
4. Freight	\$
5. Taxes/MHIT	\$
6. Other	\$
7. Other	\$
8. TOTAL PRICE	\$

B. DOWN PAYMENT

1. Trade-in Allowance	\$
2. Minus, Balance Due on Trade-In	\$ ()
3. New Trade-in Allowance	\$
4. Cash Deposit Paid	\$
5. Total Down Payment or Deposit	\$

C. BALANCE DUE

Balance Due \$ _____

TO BE PAID ON: _____

D. CASH OR FINANCING

The balance due will be paid by:

- ☐ Cash from Purchaser
☐ One or more third party loans

F. SELLER INSTALLED OPTIONS (extend to line A.2.)

Item	Description	Cost
		\$
		\$
		\$
		\$
		\$
		\$
		\$

TOTAL SELLER INSTALLED OPTIONS \$ _____

E. APPLIANCES-FURNITURE-EQUIPMENT INCLUDED IN BASE PRICE

Item	Description

WHEELS & AXELS INCLUDED

☐ YES ☐ NO

G. DESCRIPTION OF TRADE-IN

Manufacturer _____ Model _____ Year _____ No. of Sections _____

Section Label No.		ID Number		Size (excl. hitch)	x
Section Label No.		ID Number		Size (excl. hitch)	x

Lienholder _____ Address _____

Balance Owed \$ _____ Title No. _____ **BALANCE OWED TO BE PAID BY:** _____

(Seller or Purchaser(s))

H. INSULATION

NEW HOMES ONLY: As required by Federal Trade Commission Regulations, the information relating to the insulation installed or to be installed in the Improvements at the Property is:

LOCATION	R-VALUE	THICKNESS	TYPE OF INSULATION
CEILING			
EXTERIOR			
FLOORS			
WALLS			
OTHER			

All stated R-Values are based on information provided by the manufacturer of the insulation.

I. OTHER CONSIDERATIONS OR CONDITIONS

J. SPECIAL EXPRESS AGREEMENTS

- Title to the home will be transferred to Purchaser(s) when the Cash Balance is paid in full regardless of the date of delivery.
- Each new home is covered by a written warranty of the manufacturer. Seller makes no warranties except as may be given to Purchaser(s) in writing. If the home is not new, Seller will deliver to Purchaser(s) a written warranty that the home is habitable and will remain habitable for sixty (60) days from the date of purchase. **Other than the written warranty of habitability, there are no express or implied warranties of any kind. Specifically, subject to the written warranty of habitability, the used home is sold "as is, where is" and is not subject to the implied warranty of fitness for a particular purpose. Purchaser(s) represent that they have examined the home, and based on Purchaser(s)'s own judgement and inspection determined that the home is suitable for occupancy, and that it is of acceptable quality. If the home purchased is ordered to be built by a home manufacturer, Purchaser has relied exclusively on Purchaser's own inspection of a display model, brochures, floorplans, home elevations, manufacturer's website, or other home descriptions provided by the manufacturer in Purchaser making the decision to purchase the home described in this contract.**
- Purchaser(s) represent and warrant that good and marketable title to the trade-in described in paragraph G will be delivered to Seller at the time the Balance Due is paid, that the trade-in is free from all liens or encumbrances except as set forth in paragraph G, that all taxes levied against the trade-in have been paid, and that the Balance Owed on the trade-in is an accurate pay-off amount to secure release of all liens or encumbrances; otherwise, Seller may, at Seller's option pay to clear the trade-in title and Purchaser(s) will reimburse the Seller on demand, or Seller may add the amount necessary to clear the trade-in title to this contract as if it has originally been included.
- If this contract is subject to financing (as selected in paragraph D), then this contract is subject to Purchaser(s) being approved for the financing. If the Property does not satisfy the lenders' underwriting requirements for the loan(s), (including, but not limited to appraisal, insurability and lender required repairs), Purchaser(s) may terminate this contract by giving notice to Seller prior to closing. If Purchaser(s) is approved, executes this binding contract and all necessary binding lender documents or any necessary agreements, including a note and security agreement, as may be required to finance Purchaser(s)'s home purchase at or before closing, the Purchaser(s)'s statutory three day right of rescission begins at the time of execution of this binding contract. Unless the Purchaser(s) has waived their right of rescission because of a bona fide emergency in accordance with the laws of the state of Texas, the right of rescission ends after three days following the signing of this contract.
- The following expenses must be paid at or prior to closing by the Purchaser(s): Appraisal fees; loan application fees; adjusted origination charges; credit reports; preparation of loan documents; interest on the notes from date of disbursement to one month prior to dates of first monthly payments; recording fees; copies of easements and restrictions; loan title policy with endorsements required by lender; loan-related inspection fees; photos; amortization schedules; escrow fee; all prepaid items, including required premiums for flood and hazard insurance, reserve deposits for insurance, ad valorem taxes and special governmental assessments; final compliance inspection; courier fee; repair inspection; underwriting fee; wire transfer fee; expenses incident to any loan; Private Mortgage Insurance Premium (PMI), VA Loan Funding Fee, or FHA Mortgage Insurance Premium (MIP) as required by the lender; and other expenses payable by Purchaser(s) under this contract. Purchaser(s) may not pay charges and fees expressly prohibited by FHA, VA, Texas Veterans Land Board or other governmental loan program regulations.
- If Purchaser(s) fails to comply with this contract, Purchaser(s) will be in default, and Seller may (a) enforce specific performance, seek such other relief as may be provided by law, or both, or (b) terminate this contract and receive money as reimbursement from the Purchaser(s) for Seller's actual out of pocket expenses incurred prior to Closing by the Seller that was asked for or contracted for by the Purchaser(s), thereby releasing both parties from this contract. Purchaser(s) will reimburse Seller within ten days after Purchaser(s)'s receipt of an invoice from Seller stating the amount of Seller's expenses accompanied by reasonable evidence of Seller's expenses.
- If Seller fails to comply with this contract Seller will be in default and Purchaser(s) may terminate this contract and receive the down payment money refunded, thereby releasing both parties from this contract.
- It is the policy of the State of Texas to encourage resolution of disputes through alternative dispute resolution procedures such as mediation. Subject to applicable law, any dispute between Seller and Purchaser(s) related to this contract which is not resolved through informal discussion will be submitted to a mutually acceptable mediation service or provider. The parties to the mediation shall bear the mediation costs equally. This paragraph does not preclude a party from seeking equitable relief from a court of competent jurisdiction.

9. A Purchaser(s) or Seller who prevails in any legal proceeding related to this contract is entitled to recover reasonable attorney's fees and all costs of such proceeding.
10. All covenants, representations and warranties in this contract survive closing. If any representation of Seller in this contract is untrue on the Closing date, Seller will be in default. Unless expressly prohibited by written agreement, Seller may continue to show the Property and receive, negotiate and accept back up offers.
11. CHOICE OF LAW: THIS CONTRACT IS TO BE CONSTRUED UNDER THE LAWS OF THE STATE OF TEXAS, WITHOUT REGARD TO CHOICE-OF-LAW RULES OF ANY JURISDICTION.
12. Any notice required by or permitted under this contract must be in writing. Any notice required by this contract will be deemed to be delivered (whether actually received or not) when deposited with the United States Postal Service, postage prepaid, certified mail, return receipt requested, and addressed to the intended recipient at the address shown in this contract. Notice may also be given by regular mail, personal delivery, courier delivery, facsimile transmission, or other commercially reasonable means and will be effective when actually received, provided that (a) any notice received on a Saturday, Sunday, or holiday will be deemed to have been received on the next day that is not a Saturday, Sunday, or holiday and (b) any notice received after 5:00 P.M. local time at the place of delivery on a day that is not a Saturday, Sunday, or holiday will be deemed to have been received on the next day that is not a Saturday, Sunday, or holiday. Any address for notice may be changed by not less than ten days' prior written notice delivered as provided herein. Indicate in the boxes below if addresses for notices is different than parties addresses listed on page one.

Purchaser (s) _____

Address _____ Email _____

City _____ State _____ Zip _____ Phone: _____ / _____

Seller _____

Address _____ Email _____

City _____ State _____ Zip _____ Phone: _____ / _____

13. SEVERABILITY: If a provision in this contract is unenforceable for any reason, to the extent the unenforceability does not destroy the basis of the bargain among the parties, the unenforceability does not affect any other provision of this contract, and this contract is to be construed as if the unenforceable provision is not a part of the contract.
14. WAIVER OF JURY TRIAL: Purchaser(s) and Seller, each after consultation with an attorney of its own selection (which counsel was not directly or indirectly identified, suggested, or selected by the other party), both voluntarily waive a trial by jury of any issue arising in an action or proceeding between the parties or their successors, under or connected with this contract or its provisions. Purchaser(s) and Seller acknowledge to each other that Purchaser(s) and Seller are not in significantly disparate bargaining positions.
15. WIND ZONE RESTRICTIONS: In Texas, no home constructed on or after September 1, 1997, to Wind Zone I standards can be installed in Wind Zone II. All homes constructed prior to September 1, 1997, may be installed in Wind Zone I or Wind Zone II. Other states may have restrictions prohibiting installation or occupancy in Wind Zone II and III areas. There may also be restrictions in other states against installing your home in a thermal or roof load zone for which the home was not designed and constructed.
16. This contract, its exhibits, and any closing documents delivered at Closing are the entire agreement of the parties concerning the sale of the Property by Seller to Purchaser(s). There are no representations, warranties, agreements, or promises pertaining to the Property or the sale of the Property by Seller to Purchaser(s), and Purchaser(s) is not relying on any statements or representations of Seller or any agent of Seller, that are not in those documents. This contract cannot be changed except by their written agreement.
17. READ THIS CONTRACT CAREFULLY BEFORE SIGNING.

Purchaser Signature

Purchaser Signature

Seller Signature

Seller Signature

EXECUTED the _____ day of _____, 20____ (EFFECTIVE DATE)